

		Moving party to give notice.
3.	HOME OF THE MINISTERING ANGEL VS. SENECA FAMILY OF AGENCIES 2025-01498434	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Defendant Seneca Family of Agencies’s Motion to Compel Further Responses to its Form Interrogatories, set one, is GRANTED. Plaintiff is ORDERED to provide a further response to interrogatory no. 17.1 and provide a verification by the person with personal knowledge of Plaintiff’s compliance with its discovery obligations. Defendant has reserved its request for sanctions for a separate motion. (See <i>London v. Dri-Honing Corp.</i> (2004) 117 Cal.App.4th 999, 1008.) Defendant’s requests for judicial notice are granted. (Evid. Code, § 452(d).) The Court finds Plaintiff has failed to comply with its discovery obligations. Code of Civil Procedure section 2030.220(c) requires a party to “make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations” Plaintiff responded to numerous subparts of interrogatory no. 17.1 stating “(b) Responding Party and its representatives lack personal knowledge of facts sufficient at this time to either admit or deny the request. Responding Party’s representatives directly involved in the 1987 transaction inclusive of Billy Eugene Small have since passed away. [¶] (c) Responding Party is informed and believes that Dan McQuaid (address and telephone number unknown to Responding Party) or Lloyd Copenbarger, Esq. (address and telephone number unknown to Responding Party) may have information relating to the request.” Plaintiff’s person most knowledgeable, Doris Small, signed the verification as an officer of Plaintiff stating: “[t]he matters stated in the foregoing document are true of my own knowledge” (Averett Decl., Ex. J.) Later, Small testified at her deposition, she did not conduct a reasonable search. (Averett Decl., Ex. P, 48:4-62:25.) Thus, Plaintiff is compelled to provide a further response to interrogatory no. 17.1 after conducting “reasonable and good faith effort to obtain the information” and is ordered to provide a verification by the person with personal knowledge of the efforts. 2. MOTION TO COMPEL PRODUCTION Defendant Seneca Family of Agencies’s Motion to Compel Further Responses to its Requests for Production, set one, is GRANTED.

Plaintiff is ORDERED to provide a further response to requests nos. 2-10 and 13-22 and provide a verification by the person with personal knowledge of Plaintiff's compliance with its discovery obligations.

Defendant has reserved its request for sanctions for a separate motion. (See *London v. Dri-Honing Corp.* (2004) 117 Cal.App.4th 999, 1008.)

Defendant's requests for judicial notice are granted. (Evid. Code, § 452(d).)

The Court finds Plaintiff has failed to comply with its discovery obligations. Code of Civil Procedure section 2031.230 requires a party to "affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand." Plaintiff responded to each request: "After conducting a diligent search and reasonable inquiry, Responding Party has no documents at this time in its custody, control or possession responsive to this request. Responding Party's inability to produce documents subject to the request is based on Responding Party's review of all documents in Responding Party's current possession and control, and in Responding Party's present inability to determine whether such documents existed at any time. If such documents did exist, they may be in the possession of Dan McQuaid (address and telephone number unknown to Responding Party) or Lloyd Copenbarger, Esq. (address and telephone number unknown to Responding Party)." (Averett Decl., Ex. I.)

Plaintiff's person most knowledgeable, Doris Small, signed the verification as an officer of Plaintiff stating: "[t]he matters stated in the foregoing document are true of my own knowledge" (Averett Decl., Ex. I.) Later, Small testified at her deposition, she did not conduct a reasonable search and inquiry. (Averett Decl., Ex. P, 48:4-62:25.) Thus, Plaintiff is compelled to provide a further response to nos. 2-10 and 13-22 after conducting "a diligent search and reasonable inquiry" and is ordered to provide a verification by the person with personal knowledge of the search and inquiry.

3. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS

Defendant Seneca Family of Agencies's Motion to Compel Further Responses to its Requests for Admission, set one, is GRANTED.

Plaintiff is ORDERED to provide a further response to requests nos. 1, 2, 4, 6, 8, 9-11, 13-17, and 20-26 and provide a verification by the person with personal knowledge of Plaintiff's compliance with its discovery obligations.

		Defendant has reserved its request for sanctions for a separate motion. (See <i>London v. Dri-Honing Corp.</i> (2004) 117 Cal.App.4th 999, 1008.) Defendant's requests for judicial notice are granted. (Evid. Code, § 452(d).) The Court finds Plaintiff has failed to comply with its discovery obligations. Code of Civil Procedure section 2033.220(c) requires a party to state "a reasonable inquiry concerning the matter in the particular request has been made" Plaintiff responded to each request: "Responding Party conducted a reasonable inquiry into the matters addressed in the request. That inquiry included reviewing documents in Responding Party's possession, custody, or control and attempting to identify individuals with knowledge of the transactions or occurrences giving rise to the above-captioned action. However, after reasonable inquiry and investigation, Responding Party presently lacks sufficient information or knowledge to admit the truth of the matter stated in the request, and therefore Responding Party denies." (Averett Decl., Ex. H.) Plaintiff's person most knowledgeable, Doris Small, signed the verification as an officer of Plaintiff stating: "[t]he matters stated in the foregoing document are true of my own knowledge" (Averett Decl., Ex. H.) Later, Small testified at her deposition, she did not conduct a reasonable inquiry. (Averett Decl., Ex. P, 48:4-62:25.) Thus, Plaintiff is compelled to provide a further response to nos. 1, 2, 4, 6, 8, 9-11, 13-17, and 20-26 after conducting "a diligent search and reasonable inquiry" and is ordered to provide a verification by the person with personal knowledge of the inquiry.
4.	LIMON VS. RBANQUEST 2023-01361669	1. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiffs Francisco Limon and Belen Limon's unopposed Motion to Compel Deposition of Defendant Rohit Eddie Bhatia is DENIED. Code of Civil Procedure, section 2024.020 provides: (a) Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action. (b) Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings. Code of Civil Procedure, section 2024.050, subdivision (a) provides: "On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery